

#	Case Name	Tentative
50.	Bufkin v. Vista Del Rio Housing Partners, LP 2024- 01406584	MOTION NO. 1 Defendant City of Orange’s Demurrer to the Second Cause of Action of the Second Amended Complaint (“SAC”) is OVERRULED. The special demurrer for uncertainty is also OVERRULED. Second Cause of Action – Dangerous Condition of Public Property The Government Claims Act (“Act”) provides that “[e]xcept as otherwise provided by statute... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815(a).) Government Code section 835 “prescribes the conditions under which a public entity may be held liable for injuries caused by a dangerous condition of public property.” (<i>Cordova v. City of Los Angeles</i> (2015) 61 Cal.4th 1099, 1105.) To state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. (<i>Soliz v. Williams</i> (1999) 74 Cal.App.4th 577, 584-585.) “It is a plaintiff’s responsibility to plead facts sufficient to show [their] cause of action lies outside the breadth of any applicable statutory immunity.” (Ibid. (cleaned-up).) Moving Defendant argues the SAC is uncertain because the subject accident did not occur within the City of Orange, but was located in Santa Ana. Moreover, Defendant argues there are no specific allegations against the City of Orange that are separate and apart from those also asserted against the City of Santa Ana. Therefore, the Moving Defendant cannot determine what claims are directed against it as compared to those alleged against other defendants. As stated in a prior order, Plaintiffs allege the shared intersection of Garden Grove Blvd./Memory Lane and The City Drive and adjacent roadway (as to each City) are jointly owned/controlled by both City of Santa Ana and City of Orange. (FAC, ¶7.) Whether the Subject Roadway was actually owned and controlled by both the City of Santa Ana and City of Orange must be assumed to be true for purposes

#	Case Name	Tentative
		of demurrer. Therefore, the court finds the SAC is not uncertain for this reason and the reasons stated below. Moving Defendant next argues the SAC fails to state with particularity what made the property dangerous. Instead, the SAC references a laundry list of separate aspects of the roadway and concludes that each aspect constituted a “dangerous condition.” While the SAC’s list of dangerous conditions is more expansive than the prior complaint, Defendant contends it is still unclear how both entities are liable for these conditions. The court disagrees. Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway. The Subject Roadway is anomalous because unlike a typical T-intersection, it allows continued access beyond the end of the road. (SAC, ¶ 7.) The physical design features of the Subject Roadway cause motorists not to perceive the end of the roadway because the pavement surface, width, and grade continue uninterrupted from the public roadway directly into the Premises’ parking lot and driveway. Likewise, the intersection and approaching roadway aligns directly with the property entrance, visually suggesting the road continues through. (SAC, ¶ 30(a).) These are just some of the allegations in paragraph 30 of the SAC regarding the dangerous condition of the Subject Roadway, and such defects are not related to roadway markings, traffic control signals or warning signs. Thus, the court finds that Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway and the City of Orange’s alleged joint ownership of the property. Accordingly, the demurrer to the second cause of action is OVERRULED. Defendant shall file an answer within 5 days. MOTION NO. 2 Defendant City of Orange’s Demurrer to the Second Cause of Action of the Second Amended Complaint (“SAC”) is OVERRULED. The special demurrer for uncertainty is also OVERRULED. Second Cause of Action – Dangerous Condition of Public Property The Government Claims Act (“Act”) provides that “[e]xcept as otherwise provided by statute... [a] public entity is not liable

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		for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815(a).) Government Code section 835 "prescribes the conditions under which a public entity may be held liable for injuries caused by a dangerous condition of public property." (<i>Cordova v. City of Los Angeles</i> (2015) 61 Cal.4th 1099, 1105.) To state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. (<i>Soliz v. Williams</i> (1999) 74 Cal.App.4th 577, 584-585.) "It is a plaintiff's responsibility to plead facts sufficient to show [their] cause of action lies outside the breadth of any applicable statutory immunity." (<i>Ibid.</i> (cleaned-up).) Moving Defendant argues that allegations regarding joint ownership of the Subject Roadway between the City of Orange and the City of Santa Ana are conclusory. Again, whether such allegation is true remains to be seen, but for purposes of demurrer the allegation is sufficient. Moving Defendant next argues the SAC fails to plead with particularity that the Subject Roadway constituted a dangerous condition. Instead, the SAC references a laundry list of separate aspects of the roadway and concludes that each aspect constituted a "dangerous condition" without any specific facts about how Moving Defendant is responsible for these conditions. The court disagrees. Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway. The Subject Roadway is anomalous because unlike a typical T-intersection, it allows continued access beyond the end of the road. (SAC, ¶ 7.) The physical design features of the Subject Roadway cause motorists not to perceive the end of the roadway because the pavement surface, width, and grade continue uninterrupted from the public roadway directly into the Premises' parking lot and driveway. Likewise, the intersection and approaching roadway aligns directly with the property entrance, visually suggesting the road continues through. (SAC, ¶ 30(a).) These are just some of the allegations in paragraph 30 of the SAC regarding the dangerous condition of the Subject Roadway, and such defects are not related to roadway markings, traffic control signals or warning signs, illumination or traffic speed. Based on the allegations of the SAC, the court finds the SAC is not uncertain. Plaintiffs have alleged with particularity the

#	Case Name	Tentative
		dangerous condition of the Subject Roadway and the City of Santa Ana's alleged joint ownership of the property. Accordingly, the demurrer to the second cause of action is OVERRULED. Defendant shall file an answer within 5 days. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	DEMURRER Defendants Christopher Hurtado, Hayley Jane Hurtado, Superior Roofing Systems, inc., and Jeffrey B. Moreno's Demurrer to the Complaint is OVERRULED. <u>Defendants' Request for Judicial Notice</u> as to Exhibits 1-4 is DENIED. <u>Defendant Jeffrey B. Moreno's Notice of Joinder:</u> The court grants defendant Moreno's request to join. <u>Meet and Confer</u> The parties have demonstrated efforts at a meet and confer as required. (ROA 242). <u>Contract Based Claims</u> Defendants demur to the first (breach of oral contract), second (breach of implied contract), and eighth (promissory estoppel) causes of action on the grounds the contract based claims fail under the statute of frauds. First and Second Causes of Action Civil Code § 1624(a)(1) provides that a contract that cannot be performed in one year must be in writing and signed by the party against whom enforcement is sought. Defendants contend the alleged agreement by Plaintiff to sell the family business to defendants Chris and Hayley by which they would incorporate the business; pay a to be valued purchase price; make \$10,000 monthly payments; and complete a "Formal Business Valuation" could not be performed within a year. They contend this "multi-year" obligation cannot be enforced and is barred by the statute of frauds because it was never reduced to writing.